

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LISA MICHELE HARTMAYER,

Petitioner

VS.

LUCAS DWAYNE FRENCH,

Respondent

) Case Number: FDI-25-801501

) Hearing Date: July 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Lisa Hartmayer (Wife) and Respondent Lucas French (Husband) married on 10/21/2017. Petitioner contends the parties separated on 10/14/2024, for a marriage of 6 years and 11 months. Respondent contends the parties separated on 1/3/2025, for a marriage of 7 years and 2 months. The parties do not have minor children. Both parties are currently self-represented, but are using consulting attorneys.
- 2) On for hearing is Husband's Request for Order filed 5/20/2026 seeking temporary guideline spousal support and \$20,000 in need-based attorney's fees.
- 3) On 7/20/2026, Wife filed a Responsive Declaration asking the Court to find that both parties are self-supporting and order that both parties pay for their own attorney's fees and costs. Wife states that she works between 36 and 40 hours per week, and she often works night shifts and weekends. Wife states that Husband could be earning more as a Physician's Assistant, but he prefers to work lower stress and lower paid jobs with flexible hours. Wife states she believes Husband is working less than 40 hours per week. Wife also states that just 5 days prior to her

1 filing her Responsive Declaration, the house in Connecticut where her father (age 80), mother
2 (age 71), and aunt (age 76) reside burned down. Wife states she contacted her employer and has
3 been offered an unpaid leave of absence for up to six months to care for her elderly family. Wife
4 states she is using vacation time right now, but tentatively estimates that she will be on a leave of
5 absence for three months commencing 8/1/2026. Wife states it will be a financial hardship to be
6 without income for three months and asks that the Court award her spousal support for those three
7 months and then determine Husband's need for support when she returns from leave.

- 8 4) On 7/23/2026, Husband filed a Reply Declaration reiterating all of his original requests. Husband
9 states he currently works 40 hours per week. Husband argues, "The fact that some PAs may earn
10 higher salaries does not establish that I can immediately obtain comparable employment or that
11 my current income is intentionally reduced." Husband states he has lived in his friend's spare
12 room since separation. Husband states, "This matter involves disputed issues regarding spousal
13 support, attorney's fees, property characterization and division, reimbursement claims and a
14 potential Moore/Marsden analysis on both of our real property homes, all of which require
15 competent legal representation. I am willing to engage in good-faith mediation to resolve the
16 remaining financial issues in our case. However, this does not eliminate my need for spousal
17 support and in fact increases my need for support and an award of attorney's fees as I will require
18 legal representation to assist me in mediation." Regarding Wife's family emergency, Husband
19 states, "Based on Petitioner's paystubs, she has not missed work or suffered any reduction in
20 income as a result of this family emergency. Although Petitioner indicated she may request
21 unpaid leave of absence in the future, that leave is a choice, has not occurred, and is not presently
22 affecting her income or earning capacity. A potential future decision to take unpaid leave does not
23 eliminate Petitioner's current ability to pay temporary spousal support and contribute to my
24 attorney's fees. If Petitioner later elects to voluntarily reduce her employment, that decision
25 should not automatically shift the financial burden to me to pay her spousal support. Moreover,
26 Petitioner remains a highly compensated Nurse Practitioner within the University of California
27 system with substantial earning capacity that should not be overlooked. As such, I respectfully
28 request the Court deny Petitioner's request for spousal support as her request is unsupported."

1 **B. Findings and Order**

2 1) Base Temporary Spousal Support

- 3 a. Effective 5/20/2026 (the date Husband filed his Request for Order), in accordance with
4 the XSpouse calculation attached hereto and incorporated herein, Wife shall pay to
5 Husband temporary base guideline spousal support of \$895 per month. One-half shall be
6 due and payable by the 1st and one-half shall be due and payable by the 15th of each
7 month.
8 b. Base support for July 2026 shall be paid in full no later than 7/31/2026.
9 c. Based on the foregoing, Wife owes to Husband temporary base spousal support arrears in
10 the amount of \$318 for the period 5/20/2026 – 5/31/2026 and \$895 for June 2026, for
11 total base support arrears due and owing of \$1,213 for the period 5/20/2026 – 6/30/2026.
12 These arrears shall be paid in full no later than 8/15/2026.

13 2) Smith / Ostler Temporary Spousal Support

- 14 a. Effective 5/20/2026, in addition to temporary base guideline spousal support, each party
15 shall pay to the other the applicable percentage of any additional gross income (e.g.,
16 overtime pay, bonuses, and additional compensation) received in excess of their base
17 salary, pursuant to the Bonus Tables attached the second XSpouse calculation.
18 b. The Court notes that the Guerneville rental property appears to be generating \$0 in net
19 rental income annually, even excluding depreciation. The Court further lacks sufficient
20 information to determine whether the property is Husband's separate property or
21 community property. Therefore, the Court reserves jurisdiction to determine whether any
22 future net rental income from the Guerneville property should be included in the parties'
23 Smith/Ostler calculation and, if so, in what amount.
24 c. The parties shall perform a quarterly true-up to determine Smith / Ostler temporary
25 spousal support due and owing between the parties. Commencing 10/15/2026, and
26 thereafter on January 15th, April 15th, July 15th, October 15th of each year, the parties
27 shall exchange documents showing all income received in the immediately preceding
28 three months and the parties shall meet and confer to determine what amount in Smith /
29 Ostler temporary spousal support, if any, is due and owing between the parties. The

1 parties shall pay any Smith / Ostler temporary spousal support due and owing between
2 the parties no later than January 31st, April 30th, July 31st, and October 31st.

- 3 d. The October 15th true-up shall be for all income earned during the period 5/20/2026 –
4 9/30/2026.

5 3) Wife's Request Regarding Anticipated Leave of Absence

- 6 a. Wife's request for spousal support during any period in which she elects to take a leave
7 of absence from work to care for her family is denied.
- 8 b. The Court's jurisdiction is reserved to recalculate support owed by Wife, if any, during
9 any periods in which she takes leave from work. If the Court were to recalculate support
10 owed by Wife during any leave periods, the Court would consider whether Wife had any
11 accrued vacation leave or other paid leave benefits available to her, and would consider
12 imputing to Wife as income any vacation leave or other paid leave benefits available to
13 her that she did not elect to use.

14 4) Attorney's Fees and Costs

- 15 a. The Court finds there is a disparity in access to funds to pay legal fees and that Wife has
16 the ability to make a contribution to Husband's attorney's fees while also paying for her
17 own attorney's fees, given her additional cash savings, the fact that her net spendable
18 income will be slightly higher than Husband's after base support is paid, and that Wife
19 earns significant income in addition to her base income, of which Wife will only pay a
20 percentage to Husband in Smith / Ostler temporary spousal support. The Court does not
21 find that Wife has the ability to pay the full \$20,000 Husband is requesting while also
22 paying for her own fees. The Court will instead award to Husband \$10,000, which the
23 Court finds to be a just, reasonable, and necessary amount. Wife shall pay this amount to
24 Husband no later than 8/15/2026.

25 5) The Court will prepare the Findings and Order After Hearing.

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Fixed Shares	Husband	Wife	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	0	2026			
% time with NCP	0.00 %	0.00 %		Comb. net spendable	23916	23916
Filing status	MFS->	<-MFS	GUIDELINE	Percent change	0%	0%
# exemptions	1 *	1 *	Nets(adjusted)	Husband		
Wages+salary	13294	23920	Husband	9635		
Self-employed income	0	0	Wife	14280	895	895
Other taxable income	0	0	Total	23916	10530	10530
TANF+CS received	0	0	Support		0	0
Other nontaxable income	0	0	Addons	0	% of combined spendable	44%
New spouse income	0	0	Guideln CS	0	% of saving over guideline	0%
401(k) employee contrib	2042	2042	S.Clara SS	895	Total taxes	3659
Adjustments to income	0	0	Total	895	Dep. exemption value	0
SS paid prev marriage	0	0	-		# withholding allowances	0
CS paid prev marriage	0	0			Net wage paycheck	6654
Health insurance	0	0		Wife		
Other medical expense	0	0		Payment cost/benefit	-895	-895
Property tax expense	481	1060		Net spendable income	13386	13386
Ded interest expense	225	1498	Proposed	Change from guideline	0	0
Charitable contributions	0	0	Tactic 9	% of combined spendable	56%	56%
Misc tax deductions	0	0	CS	% of saving over guideline	0%	0%
Qual bus income ded	0	0	SS	895	Total taxes	7000
Required union dues	0	189	Total	895	Dep. exemption value	0
Mandatory retirement	0	2451		# withholding allowances	0	0
Hardship deduction	0 *	0	Saving	0	Net wage paycheck	12644
Other GDL deductions	0	0	Releases	0		
Child care expenses	0	0				

Wife pays Guideline SS, Proposed SS

Annual Bonus Income Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband

Husband's Bonus	Child Support		Spousal Support		Total CS	Total SS (adjusted)
	% of bonus	\$	% of bonus	\$		
0	0.00	0	0.00	0	0	0
5,000	0.00	0	28.43	1,421	0	9,313 R
10,000	0.00	0	28.43	2,843	0	7,892 R
15,000	0.00	0	28.43	4,264	0	6,471 R
20,000	0.00	0	28.43	5,685	0	5,049 R
25,000	0.00	0	28.43	7,107	0	3,627 R
30,000	0.00	0	28.94	8,683	0	2,051 R
35,000	0.00	0	29.31	10,260	0	475 R
40,000	0.00	0	26.84	10,734	0	0
45,000	0.00	0	23.85	10,734	0	0
50,000	0.00	0	21.47	10,734	0	0
55,000	0.00	0	19.52	10,734	0	0
60,000	0.00	0	17.89	10,734	0	0
65,000	0.00	0	16.51	10,734	0	0
70,000	0.00	0	15.33	10,734	0	0
75,000	0.00	0	14.31	10,734	0	0
80,000	0.00	0	13.42	10,734	0	0
85,000	0.00	0	12.63	10,734	0	0
90,000	0.00	0	11.93	10,734	0	0
95,000	0.00	0	11.30	10,734	0	0
100,000	0.00	0	10.73	10,734	0	0
105,000	0.00	0	10.22	10,734	0	0
110,000	0.00	0	9.76	10,734	0	0
115,000	0.00	0	9.33	10,734	0	0
120,000	0.00	0	8.95	10,734	0	0
125,000	0.00	0	8.59	10,734	0	0
130,000	0.00	0	8.26	10,734	0	0
135,000	0.00	0	7.95	10,734	0	0
140,000	0.00	0	7.67	10,734	0	0
145,000	0.00	0	7.40	10,734	0	0
150,000	0.00	0	7.16	10,734	0	0
155,000	0.00	0	6.93	10,734	0	0
160,000	0.00	0	6.71	10,734	0	0
165,000	0.00	0	6.51	10,734	0	0
170,000	0.00	0	6.31	10,734	0	0
175,000	0.00	0	6.49	11,352	0	618
180,000	0.00	0	6.89	12,393	0	1,659
185,000	0.00	0	7.26	13,434	0	2,700
190,000	0.00	0	7.62	14,475	0	3,741
195,000	0.00	0	7.96	15,516	0	4,782
200,000	0.00	0	8.28	16,557	0	5,823

Annual Bonus Income Wife

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Husband: 0
Prior relationship(s): OFF

Additional Cost to Wife							
Child Support			Spousal Support			Total CS	Total SS
Wife's Bonus	% of bonus	\$	% of bonus	\$			(adjusted)
0	0.00	0	0.00	0		0 R	0 R
5,000	0.00	0	22.02	1,101		0	11,835
10,000	0.00	0	22.02	2,202		0	12,936
15,000	0.00	0	22.02	3,303		0	14,037
20,000	0.00	0	22.02	4,404		0	15,138
25,000	0.00	0	22.02	5,505		0	16,239
30,000	0.00	0	22.00	6,599		0	17,333
35,000	0.00	0	21.97	7,690		0	18,425
40,000	0.00	0	21.93	8,772		0	19,506
45,000	0.00	0	21.79	9,803		0	20,538
50,000	0.00	0	21.67	10,835		0	21,569
55,000	0.00	0	21.57	11,866		0	22,601
60,000	0.00	0	21.50	12,899		0	23,634
65,000	0.00	0	21.45	13,940		0	24,675
70,000	0.00	0	21.40	14,981		0	25,716
75,000	0.00	0	21.36	16,022		0	26,757
80,000	0.00	0	21.33	17,063		0	27,798
85,000	0.00	0	21.30	18,104		0	28,839
90,000	0.00	0	21.27	19,145		0	29,880
95,000	0.00	0	21.25	20,186		0	30,921
100,000	0.00	0	21.23	21,227		0	31,962
105,000	0.00	0	21.21	22,268		0	33,003
110,000	0.00	0	21.19	23,309		0	34,044
115,000	0.00	0	21.17	24,350		0	35,085
120,000	0.00	0	21.16	25,391		0	36,126
125,000	0.00	0	21.15	26,432		0	37,167
130,000	0.00	0	21.13	27,473		0	38,208
135,000	0.00	0	21.12	28,514		0	39,249
140,000	0.00	0	21.11	29,555		0	40,290
145,000	0.00	0	21.10	30,596		0	41,331
150,000	0.00	0	21.09	31,637		0	42,372
155,000	0.00	0	21.08	32,678		0	43,413
160,000	0.00	0	21.06	33,704		0	44,438
165,000	0.00	0	21.05	34,725		0	45,459
170,000	0.00	0	21.01	35,724		0	46,459
175,000	0.00	0	20.97	36,705		0	47,440
180,000	0.00	0	20.94	37,686		0	48,421
185,000	0.00	0	20.90	38,667		0	49,402
190,000	0.00	0	20.87	39,648		0	50,383
195,000	0.00	0	20.84	40,629		0	51,364
200,000	0.00	0	20.81	41,610		0	52,345